

Ram Narayan v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 5 April 2025 · 2025:AHC:48471-DB · WRIT - C No. - 37262 of 2024 · **Writ disposed of; petitioner directed to apply under Clause 6.5.**

HEADNOTE

A consumer seeking a mandamus to decide a bill-dispute application and reconnect supply was directed to raise all grievances under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a timed hearing and reasoned order; the writ was disposed of without deciding the bill or reconnection.

FACTUAL SUMMARY

Ram Narayan, a consumer of Purvanchal Vidyut Vitran Nigam Limited, filed a writ under Article 226 seeking a mandamus that respondent no. 2 decide his application dated 9 November 2024 disputing an electricity bill, and a further mandamus to reconnect his supply. The petition was listed as fresh in February 2025 and heard on 5 April 2025.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute

HOLDING

A consumer who seeks a court-directed decision on an electricity-bill dispute and reconnection must raise all grievances by application under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if that application is filed within two weeks, the concerned authority shall grant a hearing and pass a reasoned order in accordance with law within six weeks. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ELECTRICITY-BILL DISPUTE RAISED IN THE 9 NOVEMBER 2024 APPLICATION

Relegated to a Clause 6.5 application and a reasoned order by the concerned authority. ¶ 3

NOT DECIDED — WHETHER THE PETITIONER'S SUPPLY SHOULD BE RECONNECTED

No mandamus to reconnect; left to the Clause 6.5 process. ¶ 3